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File No: EXP202208793

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure instructed by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On September 18, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against SACYR SOCIAL, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202208793

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on July 15, 2022. The complaint is directed against SACYR SOCIAL, S.L., with NIF B85621159 (hereinafter, the respondent or Sacyr). The reasons for the complaint are as follows: In the received document, the following is reported:

The complainant states that she initially provided the respondent entity, where she provides her services, with her personal email address, consenting at first, given that it was a new company (subrogation of workers due to the award of a public service concession), for it to be used as a method of contact, as she did not have a corporate address. However, she complains that for over a year she has requested that her data (personal email and phone) be deleted so that they only contact her via company phone or email. Nevertheless, they continue to contact her through her personal email. She also states that when the company sends emails to her personal address, it is done without blind copy, revealing said email to the other recipients.

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Along with the complaint, she provides:

- A copy of several emails sent by the respondent to her personal email address, containing issues related to the management and organization of work (dated 05/25/2022 and 06/03/2022)
- A copy of two emails sent by the respondent on 06/15/2022, containing information about training actions sent to various recipients, including the complainant's personal email address, without the option of blind copy.

No documentation has been provided to substantiate the request for deletion of the data or her desire for her personal phone and email not to be used as a means of contact for issues related to the management and organization of work.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to Sacyr, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on August 29, 2022, as evidenced by the acknowledgment of receipt in the file.

On September 21, 2022, this Agency received a response indicating the following:

- That the corporate email is not considered a work tool for the home care assistants of the SAD

(Home Help Service), group to which the complainant belongs, but rather as a specific communication channel of the company with employees, having been defined for this group of employees that the essential corporate communication tool is a mobile phone terminal made available to them.

This phone is prepared to communicate with home care assistants both verbally by phone call and in writing, through the WhatsApp application, in order to accommodate written work communications through this channel, in addition to incorporating other functionalities such as the time registration of the workday.

Despite the above, it indicates that not all home care assistants currently have the WhatsApp application installed and functioning on their corporate mobile terminals, as due to the high volume of affected employees, the company is experiencing some delays in managing these installations. It points out that, on a punctual and temporary basis, personal email of employees has been used for strictly work-related communications.

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related to the execution of the employment contractual relationship, along with, whenever possible, verbal communication via the corporate mobile phone.

It also indicates that both the claimant and the employees who share the same professional category within the concession to which they belong are receiving an average of 7 emails per month.

- Regarding the sending of work communications without using the blind carbon copy functionality, the respondent indicates that this was due to a punctual lack of diligence that does not correspond with the usual use and treatment of employees' personal data.

The respondent entity understands that this isolated incident does not constitute a critical data breach. However, it indicates that the employees of the company responsible for coordinating the employees assigned to the concession to which the claimant belongs have been subject to a reminder and explicit instruction immediately from the company's DPO regarding the mandatory use of the blind carbon copy functionality in communications involving personal email accounts.

- In relation to the claimant's assertion that "after more than a year requesting a corporate email address and the deletion of her personal data, she continues to receive communications at her personal email," the respondent indicates that:

- Upon reviewing the records of notifications received by the company's DPO regarding the purported exercise of the right to erasure, no evidence has been found in this regard; that is, during the period from the start of the employment relationship to the present, the employee has not submitted any exercise of rights to the DPO.

- Upon reviewing the records of notifications to the coordinators of the Home Help Service of the concession to which the claimant belongs, there is no record of the formal exercise of the right to erasure by her before these coordinators. However, written responses from the claimant are recorded on July 15 and August 5 and 6, 2022, to two work-related emails sent by the coordinators urging them not to send her any more emails.

The respondent indicates that it has reacted immediately to the complaint filed by the employee, as since August 30, 2022, the use of the claimant's personal email has ceased, with priority given to installing the WhatsApp application on her corporate mobile device, through which she is currently receiving written communications related to the development of her professional competencies.

It provides the following documentation:

- Copy of the document evidencing the delivery by the respondent entity of a corporate mobile device to the claimant, dated June 16, 2021

- Copy of the claimant's response emails in which she requests not to receive any more emails

- Copy of the response letter addressed to the claimant.

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THIRD: On September 26, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FOURTH: According to the report collected from the AXESOR tool, the entity SACYR SOCIAL, S.L. is a large company established in 2009, with a turnover of 108,478,379 euros in 2021.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In this case, according to the provisions of Article 4.1 of the GDPR, there is evidence of the processing of personal data, since the respondent carries out, among other treatments, the collection, recording, storage, use, access, and deletion of the following personal data of individuals, such as: name, N.I.F, contact details, phone number/email address, etc.

The respondent carries out this activity in its capacity as data controller, as it determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is a personal data security breach under the circumstances indicated above, categorized as a confidentiality breach due to emails being sent to several employees of the respondent.

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emails without using the blind copy option, revealing personal email addresses such as that of the complainant.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data is guaranteed in paragraph 1.f) of Article 5 of the GDPR. In turn, the security of personal data is regulated in Articles 32, 33, and 34 of the GDPR, which govern the security of processing, the notification of a personal data breach to the supervisory authority, as well as the communication to the data subject, respectively.

III

Article 5.1.f) of the GDPR

Article 5.1.f) "Principles relating to processing" of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection

against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by means of the application of appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is noted that the personal data of the complainant party were improperly exposed to third parties, as several emails were sent by email to 129 employees of the entity being complained about without using the blind copy option, revealing their personal email addresses. In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered that the known facts could constitute an infringement attributable to Sacyr, for violation of Article 5.1.f) of the GDPR.

IV

Classification of the infringement of Article 5.1.f) of the GDPR

If confirmed, the aforementioned infringement of Article 5.1.f) of the GDPR could imply the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

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In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

For the purposes of the limitation period, Article 72 "Very serious infringements" of the LOPDGDD indicates:

"1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a limitation period of three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)"

V

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what may result from the instruction, it is considered appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR and paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- Article 83.2.a) GDPR: Nature, gravity, and duration of the infringement.

- It is considered that the nature of the infringement is serious as it entails a loss of confidentiality and, therefore, of irretrievable disposition and control over personal data.

- Number of affected data subjects: 196

- Article 83.2.b) GDPR. Negligence in the infringement: There is evidence of negligence in ensuring the confidentiality of these. In this regard, it should be noted that Sacyr is a large company that carries out, as a controller and/or processor, processing that affects numerous individuals, both of the persons to whom it provides assistance services and of its employees (more than 5,000), for which it is required to exercise a higher level of diligence to ensure the confidentiality of the personal data it processes.

It is worth recalling, in this sense, the Judgment of the National Court of 17/10/2007 (rec. 63/2006),

which regarding entities whose activity involves the continuous processing of customer data, indicates "...the Supreme Court has understood that there is negligence whenever a legal duty of care is neglected, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be particularly weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data..."

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insisting on the rigor and exquisite care to comply with the legal provisions in this regard.

It is also considered appropriate to adjust the sanction to be imposed according to the following criteria established in section 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

As aggravating factors:

- Article 76.2.b) LOPDGDD. Linkage of the infringer's activity with the processing of personal data: The entity in question is dedicated to providing social, health, educational, and leisure services. The development of this activity involves continuous processing of personal data affecting numerous individuals (recipients of its services and more than 5,200 employees). Therefore, it is a large company accustomed to processing personal data, which may include health-related, socioeconomic, family data, etc.

Thus, taking into account the circumstances of the case and the criteria established in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, it is appropriate to initially set a sanction of 12,000 (twelve thousand euros).

VI

Article 32 of the GDPR

Article 32 "Security of processing" of the GDPR establishes:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data promptly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

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3. Adherence to a code of conduct approved pursuant to Article 40 or to a certification mechanism approved pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements established in paragraph 1 of this article.

4. The data controller and the data processor shall take measures to ensure that any person acting

under the authority of the controller or the processor and having access to personal data can only process such data following the instructions of the controller, unless required to do so by Union or Member State law.

The documentation in the file provides clear indications that the respondent has violated Article 32 of the GDPR, as a security incident occurred allowing unauthorized access to personal data, specifically personal email addresses, when emails were sent without using the blind carbon copy option.

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, as well as the risks of likelihood and severity for the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures should be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, verification processes (not audits), evaluation, and assessment of the effectiveness of the measures.

In any case, when assessing the adequacy of the level of security, particular attention shall be paid to the risks presented by the data processing, as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm.

In this same sense, Recital 83 of the GDPR states that “(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the inherent risks of the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the cost of their implementation with respect to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed.”

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otherwise, or unauthorized communication or access to such data, which could particularly cause physical, material, or immaterial damages and losses.”

In the present case, at the time the breach occurred, it cannot be asserted that the respondent had adequate measures in place based on the possible estimated risks to prevent the incident, as well as that the training and awareness measures directed at the personnel who were to process personal data were entirely insufficient, specifically regarding the sending of emails, since, as noted, several were sent to the employees of the respondent without using the blind copy option, revealing the personal email addresses of 129 employees.

The responsibility of the respondent is determined by the security breach evidenced in the complaint and the documentation provided, as it is responsible for making decisions aimed at effectively implementing the appropriate technical and organizational measures to ensure a level of security adequate to the risk to guarantee the confidentiality of the data.

In accordance with the evidence available in this initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to the respondent, for violation of Article 32 of the GDPR.

VII

Classification of the infringement of Article 32 of the GDPR

If confirmed, the aforementioned infringement of Article 32 of the GDPR could imply the commission of the infringements classified in Article 83.4 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

In this regard, the LOPDGDD, in its Article 71 “Infringements” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements.”

For the purposes of the statute of limitations, Article 73 “Infringements considered serious” of the LOPDGDD indicates:

“Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following are considered serious and shall prescribe after two years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679. (...)”

VIII

Sanction for the infringement of Article 32 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR and paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

- Article 83.2.a) GDPR: Nature, gravity, and duration of the infringement.

It is considered that the nature of the infringement is serious since it implies that Sacyr does not have adequate technical and organizational measures to ensure a level of security appropriate to the risk, or if such measures exist, they have not been observed or correctly implemented, which, moreover, in this specific case, has resulted in a loss of confidentiality and, therefore, of availability and control over personal data.

Likewise, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

- Article 76.2.b) LOPDGDD. Linkage of the infringer's activity with the processing of personal data: The respondent is dedicated to providing social, health, educational, and leisure services. The development of this activity involves continuous processing of personal data affecting numerous individuals (recipients of its services and around 5,200 employees, as stated). Therefore, it is a large company accustomed to processing personal data, among which health-related, socioeconomic, family data, etc., may be included.

Therefore, taking into account the circumstances of the case and the criteria established in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 32 of the GDPR, an initial sanction of €3,000 (three thousand euros) is set.

IX

Imposition of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this document.

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Acting in accordance with the provisions established in the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR. It is noted that failure to comply with a possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO INITIATE SANCTIONING PROCEEDINGS against SACYR SOCIAL, S.L., with NIF B85621159, for the alleged infringement of Articles 5.1.f) and 32 of the GDPR, classified, respectively, in Articles 83.5 and 83.4 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided for in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

TWELVE THOUSAND EUROS (12,000 euros) for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

THREE THOUSAND EUROS (3,000) for the alleged infringement of Article 32 of the GDPR, classified in Article 83.4 of the GDPR.

FIFTH: TO NOTIFY this agreement to SACYR SOCIAL, S.L., with NIF B85621159, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article

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64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 12,000 euros, resolving the procedure with the imposition of this sanction.

Likewise, you may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 12,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to submit allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 9,000 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (12,000 or 9,000 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure as completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 3, 2023, the respondent has proceeded to pay the sanction in the amount of 9,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), under the heading
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“Termination in Sanctioning Procedures” provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202208793, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to SACYR SOCIAL, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as stipulated by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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